

as well as the declaration filed by the Plaintiff on 7/25/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$21,346.38, on a credit card account.

Defendant’s Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered 11/12/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$21,346.38.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is **granted**.
2. Plaintiff shall prepare and submit the Order.
3. Court date of 6/18/26 is **vacated**.

11. 9:00 AM CASE NUMBER: L25-05041
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. TRINA RAMSEY
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/22/26, to set aside the default judgment, which was filed on 10/31/25. Request for Entry of Default was filed on 8/29/25. The Complaint in the matter was filed on 5/5/25.

The Motion was properly noticed, and is unopposed.

Defendant also filed a Declaration with this Motion, which contained a form request, by the Defendant, for arbitration, purportedly made in June, 2025. The Declaration also contained the purported agreement between the parties, which allowed for arbitration if requested by one of the parties, and, once requested, rendered arbitration as the sole mechanism by which to adjudicate any disputes.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant timely moved to set aside the Judgment. Moreover, Defendant had more than sufficient reason for failing to file an Answer to the Complaint. Approximately one month after the Complaint, Defendant triggered the arbitration process, according to the terms of the agreement between the parties. By those terms, Defendant reasonably expected that, at minimum, any court process already proceeding would be suspended until the completion of arbitration.

That she was surprised to learn that Plaintiff had proceeded with litigation in court, and that she was required to respond to the court pleadings of the Plaintiff, is more than justified.

Disposition

Defendant's Motion is **granted**.

The litigation will be stayed until resolution of the arbitration process.

Defendant shall prepare and submit the Order.

12. 9:00 AM CASE NUMBER: L25-05839
CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON
***HEARING ON MOTION FOR DISCOVERY**
FILED BY: MARINER FINANCE, LLC
TENTATIVE RULING: